

Calendar Line # 5
Case Name Ian Anderson vs Wells Fargo Bank
Case No. 24CV448600
Petition to Compel Arbitration I. <u>BACKGROUND</u> Plaintiff Ian Anderson (“Plaintiff”) brings this action for unlawful debt collection practices against Defendant Wells Fargo, Bank, N.A. Plaintiff alleges Defendant began a campaign of phone calls to collect payments due on his account by repeatedly calling him daily and multiple times a day. (Complaint at ¶ 8). “Plaintiff estimates that he received over one hundred phone calls from Defendant in an attempt to collect on the Debt.” (<i>Ibid.</i>). Plaintiff alleges two causes of action for (1) violation of the California Rosenthal Fair Debt Collection Practice Act (“Rosenthal Act”); and (2) invasion of privacy; intrusion into private affairs. Defendant now moves to arbitrate these claims based on the Arbitration Agreement contained in the Consumer Credit Card Customer Agreement (“the Agreement”). Having reviewed the Agreement, the Court will grant the motion and stay this action. II. <u>LEGAL STANDARD</u> Defendant maintains the Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement provides: “You and the Bank (the ‘Parties’) agree that in this relationship: (1) The Parties are participating in transactions involving interstate commerce; and (2) This Arbitration Agreement and any resulting arbitration are governed by the provisions of the Federal Arbitration Act (Title 9 of the United States Code).” (Declaration of Melissa N. Mickael [“Mickael Decl.”], Ex. C at p. 18). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170). III. <u>ANALYSIS</u> A. THERE IS A VALID AGREEMENT TO ARBITRATE A valid agreement to arbitrate exists between the parties. “[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 [internal citations and quotations omitted]). Here, Defendant has attached a copy of the Agreement to its motion. (Mickael Decl., Exs. A-C.) The Agreement provides: “By either signing, using or accepting the plastic card(s) issued to you by us (your ‘Card[s]’), you accept the terms and conditions of this Agreement.” (<i>Id.</i>, Ex. A at § 2). The Agreement was updated over the years. (<i>Id.</i> at ¶ 9). Each time the Agreement was updated, a copy was provided to Plaintiff. (<i>Ibid.</i>). Plaintiff does not dispute that he continued to use the credit card account through June 29, 2023. (Mickael Decl. at ¶ 11). An updated Agreement was sent to Plaintiff as recent as August 2024 and remains in effect today. (<i>Id.</i> at ¶ 12). Each version of the Agreement contains a similar if not identical arbitration clause. (<i>Id.</i>, Exs. A-C). Thus, Plaintiff’s use of the card as dictated by section 2 of the Agreement demonstrates assent to be bound by the Agreement, including its arbitration provision. Therefore, a valid agreement to arbitrate exists between the parties.

B. THE SCOPE OF THE AGREEMENT COVERS PLAINTIFF'S CLAIMS

The scope of the Agreement covers Plaintiff's claims. The Agreement provides:

a. You and Wells Fargo Bank, N.A. (the "Bank") agree that if a Dispute arises between you and the Bank, upon demand by either you or the Bank, the Dispute shall be resolved by the following arbitration process. The foregoing notwithstanding, the Bank shall not initiate an arbitration to collect a consumer debt, but reserves the right to arbitrate all other disputes with its consumer customers. A "Dispute" is any unresolved disagreement between you and the Bank. It includes any disagreement relating in any way to the Card or related services, Accounts, or matters; to your use of any of the Bank's banking locations or facilities; or to any means you may use to access the bank. It includes claims based on broken promises or contracts, torts, or other wrongful actions. It also includes statutory, common law, and equitable claims. A Dispute also includes any disagreements about the meaning or application of this Arbitration Agreement. This Arbitration Agreement shall survive the payment or closure of your Account. **YOU UNDERSTAND AND AGREE THAT YOU AND THE BANK ARE WAIVING THE RIGHT TO A JURY TRIAL OR TRIAL BEFORE A JUDGE IN A PUBLIC COURT.** As the sole exception to this Arbitration Agreement, you and the Bank retain the right to pursue in small claims court any Dispute that is within the court's jurisdiction. If either you or the Bank fails to submit to binding arbitration following lawful demand, the party so failing bears all costs and expenses incurred by the other in compelling arbitration.

(Mickael Decl., Ex. C at p. 17).

Defendant argues that a delegation clause exists because the Agreement requires the arbitration of disagreements concerning the meaning or application of the Agreement itself. The question of whether the parties agreed to arbitrate a particular dispute is generally to be decided by the court. (*AT & T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 649). The parties may, however, agree to submit the arbitrability question itself to arbitration. (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943). Courts should find that the parties agreed to arbitrate arbitrability only where there is clear and unmistakable evidence that they did so, resolving any ambiguity in favor of a finding that the issue is for the court to determine. (*Id.* at pp. 944-45). Here, it is clear that disputes concerning the applicability of the Agreement shall be heard by the arbitrator. In any event, Plaintiff brings a statutory claim for violation of the Rosenthal Act and a common law claim for invasion of privacy. These claims are unresolved disagreements concerning the use of the card. They, therefore, fall within the scope of the Agreement.

C. WAIVER MUST BE DECIDED BY THE ARBITRATOR

Plaintiff argues Defendant has waived its right to arbitrate by filing this motion one year and three months after the complaint was filed. Plaintiff argues that Defendant checked the box for trial by jury in its case management statement rather than opting for arbitration. The Court recognizes this to be a mere oversight as explained by Defendant. The completion of mandatory forms does not implicate litigation conduct on the part of Defendant. In any event and as noted above, disagreements about the meaning or application of the Agreement are to be resolved by the arbitrator. Issues such as waiver concern the application of the Agreement. Therefore, the issue of waiver has been delegated to the arbitrator and not the Court.

Furthermore, "under California law the court determines waiver, while under federal law the arbitrator must decide whether the delay in demanding arbitration was unreasonable and prejudicial, and where the delay is unrelated to

the litigation process, ‘it is improper for the judge to decide the issue.’” (*Desert Regional Medical Center, Inc. v. Miller* (2022) 87 Cal.App.5th 295, 314 [citing *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 963]).

Here, the Court has determined that the FAA governs the Agreement; therefore, federal law applies. Moreover, Plaintiff’s waiver argument is not reasonably based on any litigation conduct undertaken by Defendant. No discovery has taken place between the parties and Defendant has not filed any substantive motions apart from this one. To reiterate, the question of waiver is reserved for the arbitrator and not the court.

Accordingly, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3).

IV. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal order

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Calendar Line # 6
Case Name Quynh Tran vs City of San Jose
Case No. 24CV449214
Motion for Summary Judgment/Adjudication Before the court is defendant City of San Jose’s motion for summary judgment, or in the alternative, summary adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Quynh Tran (“Tran”) alleges that, on October 20, 2023, defendant City of San Jose (“City”) negligently maintained the sidewalk adjacent to westbound Yerba Buena Road between Nieman Boulevard and Byington Drive. (Complaint, ¶¶Prem.L-1). This condition caused plaintiff Tran to trip and fall and sustain injury. (<i>Id.</i>). On October 10, 2024, plaintiff Tran filed a Judicial Council form complaint asserting a cause of action for premises liability—dangerous condition of public property. On December 11, 2024, defendant City filed its answer to plaintiff Tran’s complaint. On March 23, 2026, defendant City filed the motion now before the court, a motion for summary judgment/adjudication of plaintiff Tran’s complaint. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subd. (a)(1): “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)). “A defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)). “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)). <u>III. ANALYSIS</u> A. DANGEROUS CONDITION OF PUBLIC PROPERTY “A public entity is liable for injury proximately caused by a dangerous condition of its property if the dangerous condition created a reasonably foreseeable risk of the kind of injury sustained, and the public entity had actual or constructive notice of the condition a sufficient time before the injury to have taken preventive measures.” (<i>Cornette v. Dept. of Transportation</i> (2001) 26 Cal.4th 63, 66 citing Gov. Code, §835, subd. (b)). Government Code section 835 provides the basis for liability in an action against a public entity for an injury caused by the dangerous condition of public property. To establish liability under Government Code section 835, the following essential elements must be proved: (1) The public property was in a <i>dangerous condition</i> at the time of the injury; (2) The injury to the plaintiff was proximately caused by the dangerous condition; (3) The kind of injury that occurred was reasonably foreseeable as a consequence of the dangerous condition; and (4) Either: